

CHAPTER 48*Dangerous Drugs Act, 1951*

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Section

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SCHEDULE.—Enactments Repealed.

An Act to consolidate the Dangerous Drugs Acts, 1920 to 1950, and section twenty-eight of the Pharmacy and Poisons Act, 1933. [1st August 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

RAW OPIUM, COCA LEAVES, INDIAN HEMP, &c.

Restriction on importation of drugs to which Part I applies.

1.—(1) It shall not be lawful for a person to import or bring into the United Kingdom a drug to which this Part of this Act applies except under a licence granted by a Secretary of State and into an approved port.

(2) In this section the expression “approved port” means a port approved by the Commissioners of Customs and Excise for the importation of drugs to which this Part of this Act applies.

Restriction on exportation of drugs to which Part I applies.

2.—(1) It shall not be lawful for a person to export from the United Kingdom a drug to which this Part of this Act applies except under a licence granted by a Secretary of State and from an approved port.

(2) If at any time the importation into a foreign country of a drug to which this Part of this Act applies is prohibited or restricted by the laws of that country, there shall, while that prohibition or restriction is in force, be attached to every licence which is issued by a Secretary of State under this Act authorising the export of that drug from the United Kingdom such conditions as appear to him necessary for preventing or restricting, as the case may be, the exportation of that drug from the United Kingdom to that country during such time as the importation of that drug into that country is so prohibited or restricted, and any such licences issued before the prohibition or restriction came into force shall, if a Secretary of State by order so directs, be deemed to be subject to the like conditions.

(3) In this section the expression “approved port” means a port approved by the Commissioners of Customs and Excise for the exportation of drugs to which this Part of this Act applies.

Power to control production, sale, &c., of drugs to which Part I applies.

3.—(1) A Secretary of State may by regulations provide for controlling or restricting the production, possession, sale and distribution of drugs to which this Part of this Act applies, and in particular, but without prejudice to the generality of the foregoing power, for prohibiting the production, possession, sale or distribution of any such drug except by persons licensed or otherwise authorised in that behalf by a Secretary of State.

(2) This section shall, in its application to Northern Ireland, have effect with the substitution, for references to a Secretary of State, of references to the Ministry of Home Affairs for Northern Ireland.

PART I
—cont.

4.—(1) The drugs to which this Part of this Act applies are raw opium, coca leaves, Indian hemp, and resins obtained from Indian hemp and all preparations of which such resins form the base. Drugs to which Part I applies.

(2) In this section—

- (a) the expression “raw opium” includes powdered or granulated opium, but does not include medicinal opium;
- (b) the expression “medicinal opium” means raw opium which has undergone the processes necessary to adapt it for medicinal use in accordance with the requirements of the British Pharmacopœia, whether it is in the form of powder or is granulated or is in any other form, and whether it is or is not mixed with neutral substances;
- (c) the expression “coca leaves” means the leaves of any plant of the genus of the erythroxylaceæ from which cocaine can be extracted either directly or by chemical transformation; and
- (d) the expression “Indian hemp” means the dried flowering or fruiting tops of the pistillate plant known as *cannabis sativa* from which the resin has not been extracted, by whatever name such tops are called.

PART II

PREPARED OPIUM

5. It shall not be lawful for a person to import or bring into, or to export from, the United Kingdom, any prepared opium. Prohibition of importation and exportation of prepared opium.

6. If a person—

- (a) manufactures, sells or otherwise deals in prepared opium; or
- (b) has in his possession any prepared opium; or
- (c) being the occupier of any premises, permits those premises to be used for the purpose of the preparation of opium for smoking or the sale or smoking of prepared opium; or
- (d) is concerned in the management of any premises used for any such purpose as aforesaid; or

Penalty for manufacturing, selling, using, &c., prepared opium.

PART II
—*cont.*

- (e) has in his possession any pipes or other utensils for use in connection with the smoking of opium or any utensils used in connection with the preparation of opium for smoking; or
 - (f) smokes or otherwise uses prepared opium or frequents a place used for the purpose of opium smoking;
- he shall be guilty of an offence against this Act.

Meaning of
“prepared
opium”.

7. In this Part of this Act the expression “prepared opium” means opium prepared for smoking and includes dross and any other residues remaining after opium has been smoked.

PART III

MEDICINAL OPIUM, COCAINE, MORPHINE, &c.

Restriction on
importation and
exportation of
drugs to which
Part III applies.

8. It shall not be lawful for a person to import or bring into, or to export from, the United Kingdom a drug to which this Part of this Act applies except under a licence granted by a Secretary of State.

Power to
control
manufacture,
sale, &c., of
drugs to
which Part III
applies.

9.—(1) For the purpose of preventing the improper use of the drugs to which this Part of this Act applies, a Secretary of State may by regulations provide for controlling the manufacture, sale, possession and distribution of those drugs, and in particular, but without prejudice to the generality of the foregoing power, for—

- (a) prohibiting the manufacture of a drug to which this Part of this Act applies except on premises licensed for the purpose by a Secretary of State and subject to any conditions specified in the licence;
- (b) prohibiting the manufacture, sale or distribution of any such drug except by persons licensed or otherwise authorised under the regulations by a Secretary of State and subject to any conditions specified in the licence or authority;
- (c) regulating the issue by medical practitioners of prescriptions containing any such drug and the dispensing of any such prescriptions; and
- (d) requiring persons engaged in the manufacture, sale or distribution of any such drug to keep such books and furnish such information either in writing or otherwise as may be prescribed by the regulations.

(2) The regulations under this section shall provide for authorising a person lawfully carrying on business in accordance with the provisions of the Pharmacy and Poisons Act, 1933, as an authorised seller of poisons—

- (a) in the ordinary course of his retail business to manufacture, at any premises duly registered under Part I of that Act, any preparation, admixture or extract of a drug to which this Part of this Act applies; or

(b) to carry on at any such premises as aforesaid the business of retailing, dispensing or compounding any such drug; subject to the power of the Secretary of State to withdraw the authorisation in the case of a person who has been convicted of an offence against this Act or the Dangerous Drugs Act, 1920, or of an offence under the enactments relating to the customs as applied by this Act or that Act and who cannot, in the opinion of the Secretary of State, properly be allowed to carry on the business of manufacturing or selling or distributing, as the case may be, any such drug:

PART III
—cont.

Provided that the Secretary of State shall, before withdrawing the authorisation in the case of any such person, consult the Council of the Pharmaceutical Society of Great Britain.

(3) Nothing in any regulations made under this section shall be taken to authorise the sale by retail of poisons by a person who is not qualified in that behalf under, or otherwise than in accordance with, the provisions of the Pharmacy and Poisons Acts, 1852 to 1941, or to be in derogation of the provisions of those Acts for prohibiting, restricting or regulating the sale of poisons.

(4) This section shall, in its application to Northern Ireland, have effect with the substitution, in subsection (1) thereof, for references to a Secretary of State, of references to the Ministry of Home Affairs for Northern Ireland and with the substitution, for subsections (2) and (3) thereof, of the following subsections:—

“(2) The regulations under this section shall provide for authorising a person who lawfully keeps open shop for the retailing of poisons in accordance with the provisions of the Pharmacy and Poisons Acts (Northern Ireland), 1925 and 1945—

(a) to manufacture at the shop in the ordinary course of his retail business any preparation, admixture or extract of a drug to which this Part of this Act applies; or

(b) to carry on at the shop the business of retailing, dispensing or compounding any such drug;

subject to the power of the Ministry of Home Affairs for Northern Ireland to withdraw the authorisation in the case of a person who has been convicted of an offence against this Act or the Dangerous Drugs Act, 1920, or of an offence under the enactments relating to the customs as applied by this Act or that Act and who cannot, in the opinion of that Ministry, properly be allowed to carry on the business of manufacturing or selling or distributing, as the case may be, any such drug:

Provided that the said Ministry shall, before withdrawing the authorisation in the case of any such person, consult the Council of the Pharmaceutical Society of Northern Ireland.

PART III
—*cont.*

(3) Nothing in any regulations made under this section shall be taken to authorise the sale, or the keeping of an open shop for the retailing, dispensing or compounding, of poisons by a person who is not qualified in that behalf under, or otherwise than in accordance with, the provisions of the Pharmacy and Poisons Acts (Northern Ireland), 1925 and 1945, or to be in derogation of the provisions of those Acts for prohibiting, restricting or regulating the sale of poisons."

Drugs to which
Part III
applies.

10.—(1) Subject to the following provisions of this section and to the provisions of Part IV of this Act, the drugs to which this Part of this Act applies are—

- (a) medicinal opium;
- (b) any extract or tincture of Indian hemp;
- (c) morphine and its salts, and diacetylmorphine (commonly known as diamorphine or heroin) and the other esters of morphine and their respective salts;
- (d) cocaine (including synthetic cocaine) and ecgonine and their respective salts, and the esters of ecgonine and their respective salts;
- (e) any solution or dilution of morphine or cocaine or their salts in an inert substance, whether liquid or solid, containing any proportion of morphine or cocaine, and any preparation, admixture, extract or other substance (not being such a solution or dilution as aforesaid) containing not less than one-fifth per cent. of morphine or one-tenth per cent. of cocaine or of ecgonine;
- (f) any preparation, admixture, extract or other substance containing any proportion of diacetylmorphine;
- (g) dihydrohydroxycodeinone, dihydrocodeinone, dihydromorphinone, acetyldihydrocodeinone, dihydromorphine, their esters and the salts of any of these substances and of their esters, morphine-N-oxide (commonly known as genomorphine), the morphine-N-oxide derivatives, and any other pentavalent nitrogen morphine derivatives;
- (h) thebaine and its salts, and (with the exception of methylmorphine, commonly known as codeine, and ethylmorphine, commonly known as dionin, and their respective salts) benzylmorphine and the other ethers of morphine and their respective salts;
- (i) any preparation, admixture, extract or other substance containing any proportion of any of the substances mentioned in paragraph (g) or in paragraph (h) of this subsection.

For the purposes of this subsection—

PART III
—cont.

- (i) the expression “ecgonine” means lævo-ecgonine and includes any derivatives of ecgonine from which it may be recovered industrially;
- (ii) the expression “medicinal opium” has the meaning assigned to it by subsection (2) of section four of this Act;

and percentages, in the case of morphine, shall be calculated as in respect of anhydrous morphine and, in the case of liquid preparations, shall, unless other provision in that behalf is made by regulations made by a Secretary of State, be calculated on the basis that a preparation containing one per cent. of a substance means a preparation in which one gramme of the substance, if a solid, or one millilitre of the substance, if a liquid, is contained in every one hundred millilitres of the preparation, and so in proportion for any greater or less percentage.

(2) If it appears to His Majesty that a new derivative of morphine or cocaine or of any salts of morphine or cocaine or any other alkaloid of opium or any other drug of whatever kind—

- (a) is, or is likely to be, productive, if improperly used, of ill effects substantially of the same character or nature as, or analogous to, those produced by morphine or cocaine; or
- (b) is capable of being converted into a substance which is, or is likely to be, productive, if improperly used, of such effects;

he may by Order in Council declare that this Part of this Act shall apply to that new derivative or alkaloid or other drug in the same manner as it applies to the drugs mentioned in the foregoing subsection.

(3) His Majesty may by Order in Council apply this Part of this Act, with such modifications as may be specified in the Order, to any of the following drugs, that is to say, methylmorphine (commonly known as codeine), ethylmorphine (commonly known as dionin) and their respective salts.

(4) If His Majesty in Council thinks fit to declare that a finding with respect to a preparation containing any of the drugs to which this Part of this Act applies has, in pursuance of Article 8 of the Geneva Convention (No. 1), been communicated by the Economic and Social Council of the United Nations to the parties to the said Convention, the provisions of this Part of this Act shall, as from such date as may be specified in the Declaration, cease to apply to the preparation specified therein.

PART IV

CONTROL OF TRADE IN NEW DRUGS

Prohibition of
trade, &c., in
new drugs.

11.—(1) It shall not be lawful for a person in the United Kingdom to trade in, or manufacture for the purpose of trade, any products obtained from any of the phenanthrene alkaloids of opium or from the ecgonine alkaloids of the coca leaf, not being a product which was, on the thirteenth day of July, nineteen hundred and thirty-one, being used for medical or scientific purposes:

Provided that if His Majesty is at any time satisfied as respects any such product that it is of medical or scientific value, he may by Order in Council direct that this subsection shall cease to apply to that product.

(2) If a person acts in contravention of the foregoing subsection he shall be guilty of an offence against this Act.

Power to apply
Part III of this
Act to new
drugs.

12. If it is made to appear to His Majesty that a decision with respect to any such product as is mentioned in subsection (1) of the last foregoing section has, in pursuance of Article 11 of the Geneva Convention (No. 2), been communicated by the Secretary-General of the United Nations to the parties to the said Convention, His Majesty, by Order in Council, may, as the case requires, either declare that the provisions of Part III of this Act shall apply to that product in the same manner as they apply to the drugs mentioned in subsection (1) of section ten of this Act or apply the said Part III to that product with such modifications as may be specified in the Order.

PART V

GENERAL

Offences and Legal Proceedings

Application
of Customs
Acts.

13.—(1) Articles prohibited to be imported by virtue of this Act shall be deemed to be included among the goods enumerated and described in the table of prohibitions and restrictions inwards contained in section forty-two of the Customs Consolidation Act, 1876, and the provisions of this Act relating to the prohibition of the export of articles shall have effect as though they were included in that Act, and the provisions of that Act and of any Act amending or extending that Act shall apply accordingly.

(2) If any goods prohibited to be exported by virtue of this Act are exported from the United Kingdom in contravention thereof, or brought to a quay or other place to be shipped for the purpose of being so exported or of being waterborne to be so exported, the exporter or his agent shall be liable to the same

penalty as that to which a person is liable under section one hundred and eighty-six of the Customs Consolidation Act, 1876, for illegally importing prohibited goods.

PART V
—cont.

14.—(1) A constable or other person authorised in that behalf by a general or special order of a Secretary of State (or in Northern Ireland either of a Secretary of State or of the Ministry of Home Affairs for Northern Ireland) shall, for the purposes of the execution of Parts I, II and III of this Act, have power to enter the premises of a person carrying on the business of a producer, manufacturer, seller or distributor of any drugs to which Part I, II or III of this Act applies, and to demand the production of, and to inspect, any books or documents relating to dealings in any such drugs and to inspect any stocks of any such drugs.

Entry and
search of
premises, &c.,
to obtain
evidence of
offences.

(2) If a justice of the peace (or in Scotland either a justice of the peace or a sheriff) is satisfied by information on oath that there is reasonable ground for suspecting—

- (a) that any drugs to which Part I, II or III of this Act applies are, in contravention of the provisions of this Act or any regulations made thereunder, in the possession or under the control of a person in any premises; or
- (b) that a document directly or indirectly relating to, or connected with, a transaction or dealing which was, or an intended transaction or dealing which would if carried out be, an offence against this Act, or in the case of a transaction or dealing carried out or intended to be carried out in a place outside the United Kingdom, an offence against the provisions of a corresponding law in force in that place, is in the possession or under the control of a person in any premises,

he may grant a search warrant authorising any constable named in the warrant, at any time or times within one month from the date of the warrant, to enter, if need be by force, the premises named in the warrant, and to search the premises and any persons found therein and, if there is reasonable ground for suspecting that an offence against this Act has been committed in relation to any such drugs which may be found in the premises or in the possession of any such persons, or that a document which may be so found is such a document as is mentioned in paragraph (b) of this subsection, to seize and detain those drugs or that document, as the case may be.

(3) If a person wilfully delays or obstructs a person in the exercise of his powers under this section or fails to produce, or conceals or attempts to conceal, any such books, stocks, drugs or documents as aforesaid, he shall be guilty of an offence against this Act.

PART V
—*cont.*
Offences and
penalties.

15.—(1) A person—

- (a) who acts in contravention of, or fails to comply with, a regulation made under this Act; or
- (b) who acts in contravention of, or fails to comply with, the conditions of a licence issued or authority granted under, or in pursuance of, this Act; or
- (c) who for the purpose of obtaining, whether for himself or for any other person, the issue, grant or renewal of any such licence or authority as aforesaid, makes a declaration or statement which is false in any particular, or knowingly utters, produces or makes use of any such declaration or statement or a document containing the same; or
- (d) who in the United Kingdom aids, abets, counsels, or procures the commission in a place outside the United Kingdom of an offence punishable under the provisions of a corresponding law in force in that place, or does an act preparatory to, or in furtherance of, an act which if committed in the United Kingdom would constitute an offence against this Act,

shall be guilty of an offence against this Act.

(2) Every person guilty of an offence against this Act shall, in respect of each offence, be liable—

- (a) on conviction on indictment, to a fine not exceeding one thousand pounds, or to imprisonment for a period not exceeding ten years, or to both such fine and imprisonment; or
- (b) on summary conviction, to a fine not exceeding two hundred and fifty pounds, or to imprisonment for a term not exceeding twelve months, or to both such fine and imprisonment;

and shall, in every case, on conviction for the offence, forfeit to His Majesty all articles in respect of which the offence was committed:

Provided that no person shall, on conviction for an offence against this Act consisting of a contravention or failure to comply with a regulation under this Act relating to the keeping of books or the issuing or dispensing of prescriptions containing drugs to which this Act applies, be sentenced to imprisonment without the option of a fine or to pay a fine exceeding fifty pounds, if the court dealing with the case is satisfied that the offence was committed through inadvertence and was not preparatory to, or committed in the course of, or in connection with, the commission or intended commission of any other offence against this Act.

(3) The court before which a person is convicted for an offence against this Act may order any forfeited articles to be destroyed or otherwise disposed of as the court thinks fit.

(4) This section shall, in its application to Northern Ireland, have effect with the substitution, for references in paragraph (a) of subsection (2) thereof to imprisonment, of references to penal servitude, and with the substitution, for references in paragraph (b) of that subsection to imprisonment, of references to imprisonment with or without hard labour.

16. If a person attempts to commit an offence against this Act, or solicits or incites another person to commit such an offence, he shall, without prejudice to any other liability, be liable on summary conviction to the same punishment and forfeiture as if he had committed an offence under this Act. Attempts, &c.,
to commit
offences.

17. Where a person convicted of an offence under this Act is a company, the chairman and every director and every officer concerned in the management of the company shall be guilty of the like offence unless he proves that the act constituting the offence took place without his knowledge or consent. Offences by
companies.

18.—(1) No person shall—

(a) in England or Wales, be proceeded against by indictment for an offence under this Act unless the proceedings are instituted by, or with the consent of, the Attorney General or by the Director of Public Prosecutions; Legal
proceedings.

(b) in Northern Ireland, be proceeded against as aforesaid unless the proceedings are instituted by, or with the consent of, the Attorney General for Northern Ireland:

Provided that paragraph (a) of this subsection shall not apply where the person charged claims, in pursuance of section seventeen of the Summary Jurisdiction Act, 1879, to be tried by a jury.

(2) Any proceedings before a court of summary jurisdiction for an offence against this Act or for attempting to commit or soliciting or inciting another person to commit such an offence may, notwithstanding any enactment prescribing the time within which such proceedings may be brought, be brought either within the time so prescribed or within three months from the date on which evidence sufficient in the opinion of a Secretary of State to justify a prosecution for the offence comes to his knowledge, whichever is the longer, and for the purposes of this subsection a certificate purporting to be signed by a Secretary of State as to the date on which such evidence as aforesaid comes to his knowledge shall be conclusive evidence thereof.

In the application of this subsection to Scotland references to the Lord Advocate, and in the application of this subsection to Northern Ireland references to the Attorney General for Northern Ireland, shall be substituted for the references to a Secretary of State.

PART V
—cont.

(3) For the avoidance of doubt it is hereby declared that in any proceedings against a person for an offence against this Act it is not necessary to negative by evidence a licence, authority or other matter of exception or defence, and that the burden of proving any such matter lies on the person seeking to avail himself thereof.

**Power of
arrest.**

19. A constable may arrest without warrant a person who has committed, or attempted to commit, or is reasonably suspected by the constable of having committed or attempted to commit, an offence against this Act, if he has reasonable ground for believing that that person will abscond unless arrested, or if the name and address of that person are unknown to, and cannot be ascertained by, him.

**Destination of
fines in certain
cases.**

20. One half of the amount of a fine imposed by a court of summary jurisdiction in pursuance of this Act in proceedings taken by the direction of a Secretary of State or by, or by the direction of, the Director of Public Prosecutions shall, notwithstanding anything in any other enactment, be paid into the Exchequer of the United Kingdom in such manner as the Treasury may from time to time direct, and one half of the amount of a fine so imposed in proceedings taken by the direction of the Attorney General for Northern Ireland shall, notwithstanding anything in any other enactment, be paid into the Exchequer of Northern Ireland in such manner as the Ministry of Finance for Northern Ireland may from time to time direct:

Provided that, on the coming into operation of section twenty-seven of the Justices of the Peace Act, 1949 (which provides for the payment to the Secretary of State of all fines imposed by a court of summary jurisdiction in England or Wales) the foregoing provisions of this section shall cease to have effect so far as regards fines imposed by any such court.

*Supplementary***Licences and
authorities.**

21. A licence or authority issued or granted for the purposes of this Act by a Secretary of State or the Ministry of Home Affairs for Northern Ireland may be issued or granted on such terms and subject to such conditions (including, in the case of a licence, the payment of a fee) as the Secretary of State or the said Ministry, as the case may be, thinks proper.

**Orders,
Declarations
and
regulations.**

22.—(1) An Order or Declaration made under this Act by His Majesty in Council may be varied or revoked by a subsequent Order or Declaration made in the like manner and subject to the like provisions.

(2) Any power to make regulations conferred by this Act on a Secretary of State shall be exercisable by statutory instrument,

and a statutory instrument made in exercise of any such power shall be subject to annulment in pursuance of a resolution of either House of Parliament.

PART V
—cont.

(3) Every regulation made under this Act by the Ministry of Home Affairs for Northern Ireland shall be laid forthwith before each House of the Parliament of Northern Ireland, and if an Address is presented to the Governor of Northern Ireland within the period hereinafter mentioned praying that the regulation may be annulled, the Governor of Northern Ireland in Council may annul the regulation and it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder.

The period referred to in the foregoing provisions of this subsection is, in relation to either House of the Parliament of Northern Ireland, a period beginning with the day following that on which the regulation is laid before it and comprising ten days at least on which that House has sat, but not being in any case shorter in duration than twenty days; and days comprised in more than one Session of the Parliament of Northern Ireland may be reckoned for the purposes of this provision.

23.—(1) In this Act the expression “corresponding law” means a law stated in a certificate purporting to be issued by or on behalf of the government of a country outside the United Kingdom to be a law providing for the control and regulation in that country of the manufacture, sale, use, export and import of drugs in accordance with the provisions of the Hague Convention, the Geneva Convention (No. 1) and the Geneva Convention (No. 2), and a statement in any such certificate as to the effect of the law mentioned in the certificate or a statement in any such certificate that any facts constitute an offence against that law shall be conclusive. Interpretation.

(2) In this Act—

- (a) the expression “the Hague Convention” means the International Opium Convention signed at the Hague on the third day of January, nineteen hundred and twelve;
- (b) the expression “the Geneva Convention (No. 1)” means the International Opium Convention signed at Geneva on the nineteenth day of February, nineteen hundred and twenty-five; and
- (c) the expression “the Geneva Convention (No. 2)” means the Convention for the purpose of supplementing the provisions of the Conventions aforesaid which was signed at Geneva on the thirteenth day of July, nineteen hundred and thirty-one;

and any reference in the provisions of this Act (other than those of this subsection) to any of the said Conventions shall be

PART V
—cont.

construed as a reference to that Convention as amended by the Protocol on Narcotic Drugs signed at Lake Success, New York, on the eleventh day of December, nineteen hundred and forty-six.

(3) For the purposes of this Act, an article shall be deemed to be imported under licence or exported under licence if the importer or exporter, as the case may be, is the holder of a licence issued under this Act authorising the importation or exportation, as the case may be, of the article and complies with the conditions, if any, of the licence, but not otherwise.

**Provisions as
to Northern
Ireland.**

24.—(1) For the purposes of the application of this Act to Northern Ireland, the expression “court of summary jurisdiction” shall mean a court of summary jurisdiction constituted in accordance with the enactments (including enactments of the Parliament of Northern Ireland) for the time being in force in Northern Ireland relating to summary jurisdiction, and the expression “summary conviction” shall mean conviction in accordance with those enactments.

(2) For the avoidance of doubt it is hereby declared that, where a term of imprisonment is imposed under section fifteen of this Act on a person by a court of summary jurisdiction in Northern Ireland in respect of the non-payment of a fine for an offence against this Act, the provisions of section forty-four of the Summary Jurisdiction and Criminal Justice Act (Northern Ireland), 1935 (which relates to consecutive sentences of imprisonment) apply to that term of imprisonment.

(3) For the purposes of section six of the Government of Ireland Act, 1920 (which relates to the powers of the Parliament of Northern Ireland to make laws) this Act shall be deemed to have been passed before the day appointed for the purposes of that section.

**Repeal and
savings.**

25.—(1) The enactments mentioned in the first and second columns of the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule, and in Article 35 of the Government of Ireland (Adaptation of Enactments) (No. 3) Order, 1922, the words “and in the Dangerous Drugs Act, 1920,” are hereby revoked.

(2) Nothing in this Act shall affect any Order or Declaration in Council, order or regulation made, licence issued, authority or warrant granted or any other thing done under an enactment repealed by this Act, but any such Order or Declaration in Council, order, regulation, licence, authority, warrant or thing which is in force at the commencement of this Act shall continue in force and so far as it could have been made, issued, granted or done under the corresponding provision of this Act shall have effect

as if it had been made, issued, granted or done under that corresponding provision:

PART V
—cont.

Provided that this subsection shall not apply to any such approval as is mentioned in the next following subsection.

(3) Approval for the importation of raw opium given under the Dangerous Drugs Act, 1920, by the Commissioners of Customs and Excise to a port shall have effect as if it were approval for the importation of drugs to which Part I of this Act applies given under this Act by those Commissioners to that port, and approval for the exportation of raw opium given under the said Act of 1920 by those Commissioners to a port shall have effect as if it were approval for the exportation of drugs to which Part I of this Act applies given under this Act by those Commissioners to that port.

(4) Any document referring to an enactment repealed by this Act shall be construed as referring to the corresponding provision of this Act.

(5) The mention of particular matters in this section shall not be taken to affect the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

26.—(1) This Act may be cited as the Dangerous Drugs Act, 1951.

Short title
and commence-
ment.

(2) This Act shall come into operation on the day appointed for the coming into operation of the Dangerous Drugs (Amendment) Act, 1950, and immediately after that Act comes into operation.

SCHEDULE

Section 25.

ENACTMENTS REPEALED

Session and Chapter.	Short Title.	Extent of Repeal.
10 & 11 Geo. 5. c. 46.	The Dangerous Drugs Act, 1920.	The whole Act.
13 & 14 Geo. 5. c. 5.	The Dangerous Drugs and Poisons (Amendment) Act, 1923.	The whole Act.
15 & 16 Geo. 5. c. 74.	The Dangerous Drugs Act, 1925.	The whole Act.
22 & 23 Geo. 5. c. 15.	The Dangerous Drugs Act, 1932.	The whole Act.
23 & 24 Geo. 5. c. 25.	The Pharmacy and Poisons Act, 1933.	Section twenty-eight.
14 & 15 Geo. 6. c. 7.	The Dangerous Drugs (Amendment) Act, 1950.	The whole Act.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Customs Consolidation Act, 1876	39 & 40 Vict. c. 36.
Summary Jurisdiction Act, 1879	42 & 43 Vict. c. 49.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Dangerous Drugs Act, 1920	10 & 11 Geo. 5. c. 46.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Pharmacy and Poisons Act, 1933... ..	23 & 24 Geo. 5. c. 25.
Justices of the Peace Act, 1949	12, 13 & 14 Geo.6.c. 101.
Dangerous Drugs (Amendment) Act, 1950	14 & 15 Geo. 6. c. 7.

CHAPTER 49

An Act to extend the provisions of the Slaughter of Animals Act, 1933, and to implement certain recommendations of the departmental committee on the export and slaughter of horses. [1st August 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Obligation to
water and feed
animals in
lairages.

1.—(1) The occupier of every lairage shall cause every animal brought to the lairage to be provided with a sufficient quantity of wholesome water and, when it is necessary to confine any such animal for a period exceeding twelve hours, shall cause it to be provided with a sufficient quantity of wholesome food in each morning and each afternoon during which it is in confinement (including that in which it is brought into confinement):

Provided that no person shall be liable for a contravention of the requirement as to the provision of food hereby imposed—

- (a) in the case of any animal, by reason of its not having been fed in the morning or afternoon in which it is slaughtered, or
- (b) in the case of an animal which is slaughtered in any morning or afternoon for butcher's meat, by reason of its not having been fed in the preceding afternoon, or in the preceding morning, as the case may be, or
- (c) in the case of an animal as to which it is proved that it was intended that it should be slaughtered for butcher's meat in a given morning or afternoon, by reason of its not having been fed in the preceding afternoon, or in the preceding morning, as the case may be.